JUSTICE ALITO, with whom THE CHIEF JUSTICE and JUSTICE KAVANAUGH join, dissenting.

May a State regulate security arrangements on a military base in an active warzone? May state judges and juries pass judgment on questions that are inextricably tied to military decisions that balance war-related risks against long-term strategic objectives? In my judgment, the answer to these questions must be "no," and for that reason, this state-law tort case is preempted by the Constitution's grant of war powers exclusively to the Federal Government.

The event that gave rise to this case was a tragic breakdown in security at Bagram Airfield in Afghanistan in 2016, when the United States military was engaged in combat in that theater. Ahmad Nayeb, an Afghan national employed to work on the base, detonated a suicide bomb that killed 3 U. S. soldiers and 2 civilians and injured 17 others.

In the years before this event, Taliban supporters repeatedly attacked Bagram, but the military nevertheless decided for strategic reasons to adopt a policy known as "Afghan First," which required contractors working on the base to maximize the employment of Afghans. Under that policy, military officials vetted Nayeb, a former Taliban member, and cleared him to work on the base. Giving a person with Nayeb's background regular access to Bagram presented an obvious risk, but the decisionmakers apparently concluded that long-term foreign policy and defense objectives justified that danger. As a result, a subcontractor for Fluor Corporation, a defense contractor engaged in work on the base, employed Nayeb. Fluor had responsibility for supervising Nayeb's conduct, and Fluor allegedly failed to provide adequate supervision.

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Among those injured when Nayeb detonated his bomb was petitioner, former Army Specialist Winston Tyler Hencely, who suffered severe and permanent injuries. Barred by sovereign immunity from suing the Federal Government, petitioner brought this diversity suit against Fluor and as-

serted tort claims under South Carolina law. Like all members of the military wounded in the service of our country, petitioner deserves a full measure of support from the American people, who owe him a debt that can never be fully repaid. But this state-law tort suit is not the way to give petitioner what he is due.

Under the Constitution, the power to make war and conduct combat operations is entrusted exclusively to Congress and the President. See Art. I, § 8, cls. 1, 11–16; Art. II, § 1, cl. 1, § 2, cl. 1. The Constitution expressly excludes the States from this field, Art. I, § 10, cl. 3, and thus no state law, including state tort law, may intrude on the Federal Government's authority over combat-related operations.

This suit violates that cardinal principle. Among other concerns, the trial proceedings that will result from today's decision are likely to implicate the Government's policy decisions about the operation of Bagram Airfield during the War on Terror. Fluor has stated that it will attempt to assign blame for the bombing to the military. In doing so, Fluor is likely to challenge the military's decision to give Nayeb access to the base in the first place, as well as the sufficiency of the military's periodic reassessments of his trustworthiness. And to support this defense, Fluor may demand discovery of sensitive Government documents and may depose and cross-examine military commanders about policy decisions that involved a delicate and contestable balancing of wartime interests. In the end, a jury may be asked to decide whether petitioner's injuries were caused by the negligence or bad judgment of military decisionmakers and the officers responsible for the operation of the base. And to make matters worse, there is a possibility that the case will be decided under the principles of Afghan law in effect in 2016, even though simply ascertaining those principles would be a daunting task.

Because petitioner's state-law claims intrude on the Federal Government's exclusive power to make war and conduct combat operations, the Constitution preempts them.

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I

A

The Constitution makes federal law the "supreme Law of the Land," Art. VI, cl. 2, and over the years, this Court has identified a variety of circumstances in which federal law preempts state law. In this case, the opinion of the Court stresses the two situations in which preemption is most evident: where a federal law expressly preempts state law and where it is impossible for a regulated party to comply with both federal and state law. See *ante*, at 34, 37–38. But these two categories do not constitute an exhaustive list. Our precedents squarely establish that the Constitution and other federal laws may also *impliedly* preempt state law. *Kansas* v. *Garcia*, 589 U. S. 191, 202–203 (2020). And most pertinent here, we have long recognized that federal law preempts state laws that intrude on the powers that the Constitution confers exclusively on the Federal Government, as well as laws that substantially interfere with the operation of the Federal Government's organs or the work of federal officers.

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Our decisions in this vein began at least as early as *McCulloch* v. *Maryland*, 4 Wheat. 316 (1819), where the Court held that Maryland could not tax the Second Bank of the United States. Writing for the Court, Chief Justice Marshall noted that some powers, including control over federal instrumentalities like the Bank, belong exclusively to the Federal Government. *Id.*, at 429. Thus, Maryland could not control the Bank, and because the power to tax could be used to control—and indeed destroy—the Bank, the State could not tax it. *Id.*, at 431. Chief Justice Marshall stated the holding of the Court in unequivocal terms: "[T]he States have no power, by taxation or otherwise, to retard, impede, burden, or in any manner control, the operations of the constitutional laws enacted by Congress to carry into execution the powers vested in the general government." *Id.*, at 436.

That principle doomed Maryland's tax even though no provision of federal law expressly preempted the state law and even though the Court did not suggest that the Bank was incapable of paying the tax. Rather, the Court inferred the preemptive effect of federal law from the structure of the Constitution. See *id.*, at 430–431.

Five years later, the Court's decision in another landmark case involving the Second Bank of the United States reaffirmed the principle of implied preemption recognized in *McCulloch*. Writing for the Court in *Osborn* v. *Bank of United States*, 9 Wheat. 738 (1824), Chief Justice Marshall explained that some state incursions into federal operations are "so objectionable" that federal law need not say anything to preempt them. *Id.*, at 865. For example, the "collectors of the revenue, the carriers of the mail, the mint establishment, and all those institutions which are public . . . are protected, while in the line of duty; and yet this protection is not expressed in any act of Congress." *Ibid.* Thus, Ohio, like Maryland in *McCulloch*, was barred from taxing the Bank simply because of the Constitution's delineation of federal and state authority.

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McCulloch and *Osborn* were early cases identifying fields that are "exclusively federal, because made so by constitutional or valid congressional command," or because they "so vitally affec[t] interests, powers and relations of the Federal Government as to require uniform national disposition." *United States* v. *Standard Oil Co. of Cal.*, 332 U. S. 301, 307 (1947). In such areas, this Court does not apply a presumption against preemption. That presumption is grounded in respect for state sovereignty, so it applies to fields the "'States have traditionally occupied.'" *Wyeth* v. *Levine*, 555 U. S. 555, 565 (2009) (quoting *Medtronic, Inc.* v. *Lohr*, 518 U. S. 470, 485 (1996)). But when state law intrudes in an exclusively federal domain, the rationale for the presumption does not apply. In those fields, the "conflict with federal policy need not be as sharp as that which must exist for ordi-

nary pre-emption when Congress legislates 'in a field which the States have traditionally occupied.'" *Boyle* v. *United Technologies Corp.*, 487 U. S. 500, 507 (1988) (quoting *Rice* v. *Santa Fe Elevator Corp.*, 331 U. S. 218, 230 (1947)). In other words, the "fact that the area in question is one of unique federal concern changes what would otherwise be a conflict that cannot produce pre-emption into one that can." *Boyle*, 487 U. S., at 508 (emphasis deleted).

Osborn, as noted, enumerated several exclusive federal domains into which States may not intrude, and later cases reaffirmed and further developed that list. For example, the Court held that States cannot prosecute federal agents for their official acts. *In re Neagle*, 135 U. S. 1, 75–76 (1890); see *Tennessee* v. *Davis*, 100 U. S. 257, 262–263 (1880) (quoting *Martin* v. *Hunter's Lessee*, 1 Wheat. 304, 363 (1816) (Johnson, J., concurring in judgment)). They cannot impose qualifications for membership in Congress that go beyond those set out in the Constitution. *U. S. Term Limits, Inc.* v. *Thornton*, 514 U. S. 779, 806 (1995). Nor can States enact qualifications for federal employees that surpass the minimum qualifications imposed by federal law. *Johnson* v. *Maryland*, 254 U. S. 51, 57 (1920). States are also barred from singling out the Federal Government for unfavorable treatment in contracting. *United States* v. *Washington*, 596 U. S. 832, 839 (2022). They cannot impose tort liability on federal contractors for the performance of their contractual duties. *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18, 20–21 (1940). And they cannot dictate the priority of federal liens that arise under a nationwide program. *United States* v. *Kimbell Foods, Inc.*, 440 U. S. 715, 726 (1979).

In these situations, the Court found that constitutional structure dictated preemption, but today's majority largely disregards this body of precedent. The majority is certainly correct that "'[t]here is no federal pre-emption *in vacuo*,'" *ante*, at 38, and preemption cannot be based on "'some brooding federal interest'" or a "'freewheeling judicial inquiry

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into whether a state statute is in tension with federal objectives.'" *Garcia*, 589 U. S., at 202. We have been presented with and have rebuffed preemption arguments that rested on such airy grounds. See, *e. g.*, *Arizona* v. *United States*, 567 U. S. 387, 411–415 (2012): *id.*, at 424–426 (Scalia, J., concurring in part and dissenting in part); *id.*, at 437–438 (THOMAS, J., concurring in part and dissenting in part); *id.*, at 441 (ALITO, J., concurring in part and dissenting in part).[1] But any argument that constitutional structure cannot itself preempt state law comes more than two centuries too late.

B

Preemption based on constitutional structure is especially important when state law intrudes upon the Federal Government's exclusive authority to conduct relations with other nations or to wage war. As the Court has repeatedly explained, the "Federal Government . . . is entrusted with full and exclusive responsibility for the conduct of affairs with foreign sovereignties." *Hines* v. *Davidowitz*, 312 U. S. 52, 63 (1941). Indeed, "[o]ur system of government . . . imperatively requires that federal power in the field affecting foreign relations be left entirely free from local interference." *Ibid.*; see also *United States* v. *Belmont*, 301 U. S. 324, 330–

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[1] In that case, a state law required law enforcement officers to contact federal authorities regarding the immigration status of a detainee if they reasonably suspected that he or she was in this country unlawfully. *Arizona*, 567 U. S., at 411. Even if this detention did not exceed the length of time permitted by the Fourth Amendment, the Federal Government argued that this state-law requirement was preempted because its breadth conflicted with the Government's enforcement policy, which gave priority to the removal of those illegal aliens who had criminal records or presented a special danger to the community. See Brief for United States in *Arizona* v. *United States*, O. T. 2011, No. 11–182, pp. 43–52. Although divided on other issues, the Court unanimously rejected that argument. Just because the state law might have led to phone calls or emails that federal immigration officers did not wish to receive provided no sound basis for preemption. See, *e. g.*, *Arizona*, 567 U. S., at 412–413; *id.*, at 442–446 (ALITO, J., concurring in part and dissenting in part).

331 (1937) ("Governmental power over external affairs is not distributed, but is vested exclusively in the national government . . . and cannot be subject to any curtailment or interference on the part of the several states"); *Zschernig* v. *Miller*, 389 U. S. 429, 432 (1968) (the Constitution permits no "intrusion by the State into the field of foreign affairs which the Constitution entrusts to the President and the Congress"); *Saleh* v. *Titan Corp.*, 580 F. 3d 1, 11 (CADC 2009) (Silberman, J.) ("The states (and certainly foreign entities) constitutionally and traditionally have no involvement in federal wartime policy-making").

We have applied this principle in numerous preemption cases. In *Crosby* v. *National Foreign Trade Council*, 530 U. S. 363 (2000), we held that a federal statute imposing sanctions on Burma preempted a state law banning the purchase of goods produced by companies that did business with that nation. *Id.*, at 373–374. We reached that conclusion even though it would have been possible to comply with both the federal and state laws. *Id.*, at 379–380. Similarly, in *American Ins. Assn.* v. *Garamendi*, 539 U. S. 396 (2003), we held that a federal executive agreement preempted a state statute that attempted to facilitate reparations for Holocaust survivors. *Id.*, at 419, and n. 11, 427.

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As with foreign affairs more broadly, the Constitution assigns the power to make war exclusively to the Federal Government. Congress is given the power to declare war, raise armies, provide a Navy, and make rules governing the Armed Forces. Art. I, § 8, cls. 1, 11–16. And the President is made the Commander in Chief of the Armed Forces. Art. II, § 2, cl. 1. The Constitution then explicitly strips States of any similar powers. States may not "keep Troops, or Ships of War in time of Peace," or "engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay." Art. I, § 10, cl. 3. The "Constitution's text, across several Articles, strongly suggests a complete delegation of authority to the Federal Government to provide for

the common defense." *Torres* v. *Texas Dept. of Public Safety*, 597 U. S. 580, 590 (2022). The framing generation well understood this point. "The States ultimately ratified the Constitution knowing that their sovereignty would give way to national military policy." *Id.*, at 592.

* * *

In sum, we have long recognized that the Constitution itself may demand preemption when a state law intrudes upon an area of exclusive federal authority. And because the Constitution gives the Federal Government exclusive authority over foreign affairs and the conduct of wars, federal law preempts all state law that substantially interferes with the Government's exercise of those powers.

II

Applying state (or foreign) tort law in this case would substantially interfere with the Government's ability to wage war and, in particular, with its ability to implement its preferred security policies at Bagram Airfield, which for many years had been regularly attacked by Taliban supporters. In February 2007, a suicide bombing on the base killed 23 and injured 20 more. A June 2009 rocket attack killed two soldiers and injured at least six others. In May 2010, insurgents wearing U. S. Army uniforms killed an American contractor and wounded nine servicemembers. A November 2013 rocket attack killed two civilian contractors, and a December 2015 suicide bombing killed six American servicemembers.[2]

In light of this history, military planners had strong reasons to worry about base security, but they also had in mind the United States' strategic objectives. 554 F. Supp. 3d 770,

[2] P. Wellman, A Timeline of Important Moments at Bagram Airfield from 2001–2021, Stars & Stripes (July 2, 2021), https://www.stripes.com/theaters/middle_east/2021-07-02/bagram-airfield-timeline-of-events-since-2001-2026849.html (archived at https://perma.cc/J3Y7-MFNQ).

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776, n. 7 (SC 2021). President George W. Bush laid out those aims as follows: "Our goal in Afghanistan is to help the people of that country to defeat the terrorists and establish a stable, moderate, and democratic state that respects the right of its citizens, governs its territory effectively, and is a reliable ally in this war against extremists and terrorists."[3] Later, as President Obama looked forward to the day when American troops could come home, he added that the United States supported "open[ing] the door to those Taliban who abandon violence and respect the human rights of their fellow citizens."[4]

Balancing these strategic objectives and Bagram's security needs, military decisionmakers adopted a policy that entailed what they must have thought were tolerable and manageable risks. The policy manifested trust in the Afghan people, sought to promote economic development, and attempted to further the process of bringing former Taliban members back into the fold.

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This was the military's "Afghan First" policy, which gave heavy preference to the hiring of Afghans. In a March 2006 memorandum, the Commanding General of the Combined Forces Coalition in Afghanistan directed all military commanders to "make every attempt, within legal and regulatory limits, to use available Afghan services." Motion for Summary Judgment in No. 6:19–cv–00489 (D SC, Feb. 26, 2021), ECF Doc. 128–18, Exh. 16, p. 2. The memo added that "[w]henever possible, we should plan on providing Afghans with training which will add marketable skills to the

[3] President Bush Discusses Progress in Afghanistan, Global War on Terror (Feb. 15, 2007), https://georgewbush-whitehouse.archives.gov/news/releases/2007/02/20070215-1.html (archived at https://perma.cc/A6SK-VVBD).

[4] Remarks By the President in Address to the Nation on the Way Forward in Afghanistan and Pakistan (Dec. 1, 2009), https://obamawhitehouse.archives.gov/the-press-office/remarks-president-address-nation-way-forward-afghanistan-and-pakistan (archived at https://perma.cc/Z3YB-M88H).

population." *Ibid.* The memo recognized that this directive would risk some adverse consequences, but it justified the program on the ground that it would "provide opportunities for economic expansion, increased entrepreneurship, and skills training for the people of Afghanistan." *Ibid.* "As long as we can legally hire Afghans to provide services or products," the memo proclaimed, "we shall do so." *Ibid.*

The memo therefore directed military officials to award contracts to Afghans, rather than American contractors, whenever possible. And when officials awarded contracts to American companies like Fluor, the memo stated that "[o]rders are to be scoped to maximize employment of Afghans." *Ibid.* Commanders were instructed to set goals and write reports regarding the percentage of Afghans employed under the contracts they administered, and the memo challenged commanders to "be creative and aggressive in carrying out the Afghan FIRST program." *Id.*, at 3. The memo ended with the proclamation that "[t]his is a powerful way to contribute meaningfully to our campaign end state." *Ibid.*

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The Afghan First program was incorporated into Fluor's contract. Specifically, § 1.07(b) of the relevant task order required Fluor to "hire [host nation] personnel and Subcontractors to the maximum extent possible." ECF Doc. 128–19, Exh. 17, p. 6. According to Fluor's security director, "[p]ractically, this meant that the Military required Fluor to use [local nationals]. In fact, if Fluor employed persons other than Afghan nationals, the Military usually required Fluor to justify its decision." ECF Doc. 128–7, Exh. 5, p. 17.

It was under this program that Nayeb was cleared for employment on Bagram and then hired by one of Fluor's subcontractors. Because of Nayeb's past Taliban membership, clearing him entailed an obvious risk. But the military concluded that the United States' strategic objectives justified that danger. The military relied on Fluor to supervise Nayeb's conduct on the base, and this arrangement led to the bombing that seriously injured petitioner.

Based on what is known about the events leading to the bombing, it may well be that both the military and Fluor are responsible for petitioner's injuries. Under South Carolina law, they could be jointly and severally liable, but because the military is shielded by sovereign immunity, Fluor is potentially liable for all the compensatory damages that petitioner may be awarded. See *Green* v. *McGee*, 446 S. C. 343, 350, 919 S. E. 2d 903, 906 (2025); 120 F. 4th 412, 424 (CA4 2024). Any negligence on the part of the military would not diminish Fluor's liability for compensatory damages.

At this point, however, we do not know whether South Carolina law will be applied on remand. (I will discuss that question below.) But even if the rule of joint and several liability applies, Fluor will be free to try to show that the military was solely responsible for petitioner's injuries, and Fluor has stated that it will pursue that strategy. See *id.*, at 424–425 (Fluor plans to try the military as the "empty chair"). Even if this attempt to shift all blame to the Federal Government does not work, Fluor could also use evidence of the military's responsibility as a defense against petitioner's claim for punitive damages. See App. to Pet. for Cert. 150a. For these reasons, adjudication of Fluor's defense is very likely to entail an evaluation of the way the Federal Government assessed the risks and benefits of Nayeb's employment, and this would impermissibly intrude on the Federal Government's exclusive war powers.

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This suit threatens many other harms to federal interests as well. The parties may seek discovery of sensitive documents about security threats at Bagram and about the tradeoffs reflected in setting security policy. The United States will have to decide whether public disclosure of such documents is consistent with the Nation's defense and foreign policy interests, and its only way to resist their disclosure may be the invocation of the state-secrets privilege. For good reason, the Government does not lightly assert that privilege; it is "the option of last resort." *General Dynam-*

ics Corp. v. *United States*, 563 U. S. 478, 492 (2011). But in this case, the Government has not yet ruled it out. Brief for United States as *Amicus Curiae* 21, n. 1.

Depositions and trial testimony by military officers responsible for setting and implementing base security policy and protocols may pose similar problems and may also interfere with these officers' current responsibilities regarding urgent national security challenges. Members of the military who investigated the bombing may likewise be deposed, subpoenaed to testify, and cross-examined about their conclusions regarding Fluor's conduct, and this could take a toll.

All these harms will be compounded if active-duty servicemembers can bring state tort suits like petitioner's. Having active-duty servicemembers depose their commanders and question military judgments could interfere with military discipline and the proper chain of command.

The shadow of state tort liability may also undermine the Government's use of contractors to perform tasks that are closely related to actual combat operations. See 120 F. 4th, at 427 (petitioner has acknowledged that Fluor "was integrated into combatant activities" on the base (internal quotation marks omitted)); accord, 554 F. Supp. 3d, at 774. For a variety of reasons, federal policy has increased the use of contractors to provide security in dangerous locales. And in doing so, contractors take directions from the military. But "[f]aced with the specter of tort liability, . . . a contractor would have to balance battlefield needs as dictated by military command against what a judge or jury might say years after the fact." Brief for Retired Senior Military Officers as *Amici Curiae* 22. Putting contractors in this conflicted position could lead to adversarial relationships with military commanders.

Applying state tort law to events that occur on a military base in an active warzone may also lead to vexing choice-of-law problems—and those problems are certainly present here. This is a diversity case filed in federal court in South

Carolina, so that State's choice-of-law rules govern. See *Klaxon Co.* v. *Stentor Elec. Mfg. Co.*, 313 U. S. 487, 496 (1941). Under those rules, "the substantive law governing a tort action is determined by the lex loci delicti, the law of the state in which the injury occurred." *Boone* v. *Boone*, 345 S. C. 8, 13, 546 S. E. 2d 191, 193 (2001). Hencely's injury occurred in Afghanistan. So a routine application of South Carolina's *lex loci delicti* rule[5] would call for a trial under Afghan law as it existed in 2016.[6] Just identifying the relevant principles in that body of law would be a challenge.[7] And if the

[5] The result might be the same under choice of law rules like the government-interest test or the test in the Restatement (Second) of Conflict of Laws § 145 (1969). See, *e. g.*, *M. M.* v. *Islamic Republic of Iran*, 708 F. Supp. 3d 22, 47–48 (DC 2023); *Sadiqyar* v. *Mission Essential, LLC*, 2020 WL 5210850, *4, n. 3 (SD Ohio, Sept. 1, 2020) ("California choice of law rules, as stated in the 'governmental interests test,' might permit the application of Afghan law").

[6] It is possible that a South Carolina court would not apply the *lex loci delicti* rule. South Carolina courts, like those in many other States, will not apply another jurisdiction's law when doing so would contravene their own State's public policy. *Boone*, 345 S. C., at 13, 546 S. E. 2d, at 193. But determining whether Afghan law contravenes South Carolina's public policy would seem to require the identification of the relevant principles of Afghan law. And as petitioner noted at oral argument, some decisions "have applied Afghan law in situations like this." Tr. of Oral Arg. 24; see, *e. g.*, *M. M.*, 708 F. Supp. 3d, at 47–48 (suicide bombing involving federal contractor); *Haskins* v. *Midwest Air Traffic Control Serv., Inc.*, 2016 WL 3653531, *5 (ND Ill., July 8, 2016) (plane crash in Afghanistan involving American passenger). In fact, Fluor itself has had to litigate claims under Afghan law. *Allen* v. *Fluor Corp.*, 2017 WL 2618821, *5 (ND Tex., June 15, 2017). And other decisions have applied Iraqi law to similar tort claims against American military contractors. See, *e. g.*, *McGee* v. *Arkel Int'l, LLC*, 671 F. 3d 539, 543 (CA5 2012); *Al-Quraishi* v. *Nakhla*, 728 F. Supp. 2d 702, 763 (Md. 2010).

[7] Despite its length (2416 Articles), the 1977 Afghan Civil Code gives only cursory treatment to standard tort issues and omits discussion of some key topics altogether. The Code states simply that "[i]f harm is inflicted on another due to . . . fault, the perpetrator shall be obligated to pay compensation." Civil Code of the Republic of Afghanistan, Art. 776 (1977 Civil Code) (transl. by Afghanistan Legal Education Project

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application of state law would impermissibly intrude in an exclusively federal domain, then adjudicating this case under foreign law would be even worse.

III

Despite this suit's intrusion into a domain of exclusive federal authority, petitioner contends that his suit is not preempted for two main reasons: (1) the Federal Tort Claims Act's retention of sovereign immunity for "combatant activities . . . during time of war" does not apply here, 28 U. S. C. §2680(j), and (2) our decision in *Boyle* does not dictate preemption. Neither argument provides a ground for rejecting preemption.

A

The Federal Tort Claims Act (FTCA) does not help petitioner because that law simply does not speak to the question of preemption. The FTCA provides a limited waiver of the United States' sovereign immunity from suit but sets out certain exceptions to that waiver, and one of these exceptions covers claims "arising out of the combatant activities of the military or naval forces, or the Coast Guard, during time of war." *Ibid.* This exception protects the Federal Government from liability for petitioner's injuries, but its terms do not address the question whether state tort law applies to a federal contractor carrying out federal wartime

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2014). The Code similarly treats causation and joint and several liability in one-sentence provisions. Arts. 783, 789. If these bare-bones provisions supply insufficient guidance for courts, then the problems multiply. Under Afghanistan's now apparently defunct 2004 Constitution, when no specific provision of law on a question could be found, courts were instructed to consider "*Hanafi* jurisprudence"—a Sharia legal tradition—and to rule "in a way that attains justice in the best manner." Art. 130; accord, 1977 Civil Code, Art. 2. Cf. *Center Khurasan Constr. Co.* v. *JS Int'l, Inc.*, 2021 WL 5882342, *2 (D Md., Dec. 10, 2021) ("Ascertaining Afghan law is no simple task"); *Global Fleet Sales, LLC* v. *Delunas*, 203 F. Supp. 3d 789, 805 (ED Mich. 2016) ("[T]he Court would be ill-equipped to apply the law of Afghanistan").

policies on a military base in theater. Indeed, that provision does not even give rise to an inference of non-preemption. Since the FTCA concerns the Government's sovereign immunity, and since government contractors enjoy no such immunity, that Act would be a strange place to include a provision shielding such contractors from state-law liability. If anything, §2680(j) lends support to preemption because it is based on the same strong federal interest that provides the basis for preemption here: the exclusive authority of the President and Congress to decide how combat-related activities should be conducted.

B

Boyle, likewise, does not support petitioner's argument. Petitioner urges us not to "extend" the holding in *Boyle*, Brief for Petitioner 31, but that argument rests on the false premise that *Boyle* governs the preemption of all tort claims against government contractors. *Boyle*'s holding concerns the preemption of claims based on a particular federal interest, namely, the Government's interest in "the performance of federal procurement contracts." 487 U. S., at 506. When preemption is sought on the ground that the application of state law would impermissibly undermine that interest, *Boyle* provides a test for determining whether application of the state law in question would actually have that effect. It asks whether "(1) the United States approved reasonably precise specifications; (2) the equipment conformed to those specifications; and (3) the supplier warned the United States about the dangers in the use of the equipment that were known to the supplier but not to the United States." *Id.*, at 512. If all those requirements are met, *Boyle* infers that any dangerous defect in the product "may well reflect a significant policy judgment by Government officials." *Id.*, at 513. Therefore, imposing liability on a contractor for an allegedly dangerous feature of the design the Government required would pressure contractors to deviate from that design, and that would undermine the Government's interest

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in "the performance of federal procurement contracts" in accordance with its wishes. *Id.*, at 506.

The preemption claim in this case rests on a different basis. The federal interest at stake is not the performance of a procurement contract but the interest in making foreign-affairs and strategic military decisions without state interference. That interest did not figure in *Boyle*'s preemption analysis. As the Court notes, the claim in *Boyle* did not involve combatant activities. *Ante*, at 38–39. It concerned a helicopter crash off the coast of Virginia. Although the plaintiff was a Marine and the helicopter was designed for military use, the Court treated the contract under which the helicopter was procured like any other government contract. If the helicopter had been designed and procured for a civilian agency, the Court's analysis would have been the same.

If anything, *Boyle* lends support to preemption here because it held state law was preempted even in the absence of any relevant express preemption provision. And it recognized that a state tort claim may be preempted if it intrudes on an area involving a "uniquely federal interes[t]." 487 U. S., at 504. But its relevance for present purposes stops there.

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C

One other argument offered by the majority requires a response. The majority argues that federal law does not preempt all state-law claims "connected to a war zone." *Ante*, at 45. But the claim here is not simply one with some sort of connection to a "zone" in which there was an ongoing war. Rather, it is a claim that is intertwined with policy decisions regarding the way in which the war in Afghanistan should have been conducted.

The Court suggests that "barring other statutory *or constitutional considerations*, plaintiffs have been able to enforce their legal rights even when they are violated during war." *Ibid.* (emphasis added). Here, however, it is pre-

cisely because of "constitutional considerations" that petitioner's state-law claims are preempted.

In support of the proposition that a state-law tort claim may by based on war-related conduct, the Court cites three cases, but they are all far afield. The first, *Penn Dairies, Inc.* v. *Milk Control Comm'n of Pa.*, 318 U. S. 261 (1943), concerned the application of a Pennsylvania milk-control law to a base in the State. To state the obvious, state regulation of milk prices for a stateside military base presents a far lower risk of intrusion into federal war powers than state regulation of defense contractors' activities in a foreign warzone.

The other two cases are the products of a bygone legal era. See *Little* v. *Barreme*, 2 Cranch 170 (1804); *Mitchell* v. *Harmony*, 13 How. 115 (1852). Both cases predated *Erie R. Co.* v. *Tompkins*, 304 U. S. 64 (1938), and neither applied state law.[8] *Little* involved the seizure of a vessel in the Caribbean and appears to have applied admiralty or general federal common law. See 2 Cranch, at 179. *Mitchell* concerned the seizure of a merchant's personal property in Mexico during the Mexican-American War. 13 How., at 128. It, too, appears to have applied general federal common law. See *id.*, at 135–136.[9] Thus, neither case addresses whether

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[8] Additionally, both cases arose when the United States had plenary sovereign immunity from tort suits. During that period, wronged parties often obtained judgments against the officers who engaged in the contested conduct (and did not enjoy qualified immunity), and Congress often passed private bills indemnifying the officers. See J. Pfander, *Iqbal*, *Bivens*, and the Role of Judge-Made Law in Constitutional Adjudication, 114 Pa. St. L. Rev. 1387, 1394 (2010). That is what appears to have happened in these cases. See *id.*, at 1393–1394 (the Court's opinion in *Little* "reflected the Court's perception that Congress bore responsibility for indemnifying Captain Little").

[9] The majority says that the "source of the tort principles" in *Little* and *Mitchell* is irrelevant because all tort claims would be preempted under Fluor's rule. *Ante*, at 46, n. 3. But I do not contend that the Constitution bars *all* tort claims against Fluor, regardless of their source. Because the Constitution makes war an exclusively federal domain, federal

the Constitution preempts the application of *state* tort law to those carrying out federal wartime policies on a foreign military base.

* * *

The Constitution divides authority between the Federal Government and the States in many areas, but not when it comes to war. War is the exclusive domain of the Federal Government, but the Court allows state (or foreign law) to encroach on that domain. The Constitution precludes that encroachment, and therefore petitioner's suit is preempted. Because the Court holds otherwise, I respectfully dissent.

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law—including federal tort law—governs. State tort law, by contrast, has no role to play in war. *Little* and *Mitchell* are consistent with that dichotomy because they applied federal common law, not state law. The question of what, if any, federal tort claims Hencely could bring against Fluor is not presented here.